

Enterprise Intellectual Property & Data Usage Policy

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APPROVED — ACTIVE

1. Purpose & Scope

This policy defines the ownership, licensing, acceptable usage, and protection requirements for all intellectual property and data assets across TechCorp, with specific emphasis on assets ingested into, processed by, or generated through the Enterprise AI Platform. It establishes the boundaries between company-owned IP, licensed third-party IP, AI-generated outputs, and employee-created works to ensure legal clarity and enforceable protection.

This policy applies to all TechCorp employees, contractors, subsidiaries, and authorized third parties who create, access, modify, or distribute TechCorp intellectual property or data assets. It operates alongside the **Legal Department AI Usage Policy (LEG-AI-001)**, the **Corporate Compliance & Data Governance Policy (LEG-CORP-002)**, and the **Data Protection Standards** (Security Department).

2. AI Platform Integration

The Legal Department manages IP and data usage governance through the TechCorp Enterprise AI Platform, with enforcement tooling deployed in coordination with the **IT Department** and monitoring by the **Security Department**. Core integrations include:

- IP Registry & Classification Module** — AI-powered inventory of all TechCorp intellectual property assets (patents, trademarks, copyrights, trade secrets, proprietary code, datasets) with automated classification by IP type, owner, and protection tier, cross-referenced with the **Engineering Department's** code repositories and the **Marketing Department's** brand asset library.
- Data Provenance Tracker** — RAG-driven chain-of-custody tracking for datasets used in AI training and inference, recording source, license terms, transformation history, and permitted use boundaries to prevent unauthorized data ingestion into models governed by the **AI Department**.

- **License Compliance Auditor** — AI-assisted scanning of software dependencies, training datasets, and third-party content against their license terms, flagging conflicts with TechCorp’s commercial use or distribution requirements, with escalation to Legal and **Engineering**.
- **AI Output Ownership Engine** — Metadata tagging system that records the human prompt author, AI model version, source materials, and human modification level for every AI-generated work product, establishing the ownership and protectability baseline for IP claims.

Connected Departments: Engineering (code & invention disclosure) • AI (model training data governance & output attribution) • Marketing (brand assets & AI-generated content) • Security (IP access controls & exfiltration prevention) • IT (IP repository management & access provisioning) • HR (employee IP assignment & onboarding)

3. Permitted IP & Data Usage Use Cases

Use Case	AI Role	Human Oversight Required
IP asset inventory & classification	Automated discovery & categorization	IP counsel validates classification and ownership claims quarterly
License compliance scanning	Automated term extraction & conflict detection	Legal counsel reviews all flagged conflicts before remediation
Data provenance chain-of-custody tracking	Automated lineage logging & boundary enforcement	Data steward and AI Department jointly review monthly
AI-generated work product attribution	Metadata tagging & chain-of-creation logging	Author confirms attribution record; IP counsel reviews for protectability
Third-party content ingestion clearance	License-to-use mapping & risk flagging	Legal counsel approves all third-party data before AI training ingestion
Trade secret identification & marking	Pattern-based detection of unmarked confidential IP	IP counsel confirms trade secret designation and triggers protection measures

4. Prohibited Activities

The following are strictly prohibited under this policy:

- **Ingesting third-party copyrighted material into AI training pipelines without verified license.** All datasets, code repositories, and content used for model training or fine-tuning must have a documented license permitting such use, reviewed and approved by Legal before ingestion.

- **Claiming personal ownership of AI-generated work product created within the scope of employment.** All work product — whether human-authored, AI-generated, or human-AI collaborative — created by employees within their scope of employment is owned by TechCorp per the Employee IP Assignment Agreement administered by HR.
- **Uploading TechCorp trade secrets, proprietary code, or unpublished patentable inventions to public or third-party AI services.** Such materials may only be processed through the approved Enterprise AI Platform tenant with data isolation controls verified by Security.
- **Removing or altering AI output attribution metadata.** The ownership and provenance trail created by the AI Output Ownership Engine must remain intact. Tampering constitutes a violation of this policy and may jeopardize IP protection.
- **Using open-source components with copyleft licenses in proprietary products without Legal approval.** Engineering must submit all copyleft-licensed dependencies for Legal review before integration into any TechCorp product or service.

5. IP Ownership & Data Classification

All IP and data governance under this policy must comply with TechCorp's **AI Safety Guidelines** (AI Department) and the **Data Protection Standards** (Security Department). Specific provisions:

- All intellectual property created by TechCorp employees within the scope of employment is owned exclusively by TechCorp, including AI-generated and AI-assisted works where TechCorp personnel authored the prompts and exercised creative control.
- AI-generated outputs produced autonomously by the Enterprise AI Platform without material human creative direction are classified as TechCorp-owned platform outputs with ownership and protectability assessed case-by-case by IP counsel.
- Third-party data and content licensed to TechCorp retain their original ownership; the license agreement — not this policy — governs permitted use. All licenses must be registered in the IP Registry before the data enters any AI pipeline.
- The Data Classification Engine taxonomy (Public, Internal, Confidential, Restricted) applies to all IP assets; trade secrets and unpublished patent applications default to Restricted and require enhanced access controls.
- Invention disclosures identified through AI-assisted patent landscape analysis must be submitted to the IP counsel within 30 days for patentability assessment and filing decision.

6. Prompt Engineering & Quality Standards for IP Workflows

- Personnel using the AI Platform for IP-related tasks must adhere to TechCorp’s **Prompt Engineering Standards**. IP-specific requirements include:
- Prompts requesting AI-generated creative or inventive output must include the scope-of-work context to establish the human creative contribution baseline for IP ownership assessment.
 - Prompts involving third-party data must specify the source dataset and its license boundary; the AI must be instructed to operate within that boundary and flag any output that would require a broader license.
 - Trade secret and patent-sensitive prompts must include a confidentiality marker recognized by the AI Platform to restrict logging and cross-session retention.
 - All IP-related prompt templates must be version-controlled and approved by IP counsel before distribution to non-legal personnel.
 - Quarterly audits of AI-assisted IP workflows are conducted by Legal Operations to verify attribution metadata integrity and license compliance; findings are reported to the General Counsel and the AI Department.

7. Roles & Responsibilities

Role	Responsibility
General Counsel	Overall policy ownership; final authority on IP ownership disputes; authorizes exceptions to data ingestion rules; approves patent filing decisions.
IP Counsel	Day-to-day IP portfolio management; invention disclosure review; patentability assessment; license compliance interpretation; trade secret designation authority.
Legal Operations Lead	IP Registry tooling management; attribution metadata audit scheduling; prompt template governance for IP workflows; training coordination.
Engineering Department	Invention disclosure submission; license compliance for all software dependencies; IP marking of proprietary code repositories; open-source usage reporting to Legal.
AI Department	Training data provenance enforcement; AI output attribution engine maintenance; model usage logging for IP chain-of-creation; data ingestion pipeline license gates.
Marketing Department	Brand asset registration in IP Registry; AI-generated content review for trademark and copyright implications; approval of all AI-generated public-facing materials before publication.
Security Department	IP access control enforcement; exfiltration monitoring for trade secrets and Restricted IP; quarterly IP data access audits; incident response for IP-related breaches.
IT Department	IP Repository infrastructure; access provisioning per Legal-defined IP tiers; data retention and deletion workflows for IP assets; platform

	integration maintenance.
HR Department	Employee IP Assignment Agreement administration; onboarding IP acknowledgment; exit interview IP confirmation; contractor IP terms enforcement.

8. Incident Response

Any of the following constitutes an IP or data usage incident and must be reported within the timeframe specified to the General Counsel, IP Counsel, and Security Department:

- Unauthorized ingestion of third-party copyrighted or copyleft-licensed material into AI training pipelines — report within 2 hours to IP Counsel, AI Department, and General Counsel; ingestion must be halted immediately.
- Suspected trade secret or unpublished patentable invention exposure to an external AI service — report within 1 hour to IP Counsel, Security, and the General Counsel; initiate breach assessment per the joint Security-Legal incident response procedure.
- Detection of removed or altered AI output attribution metadata — report within 4 hours to Legal Operations and IP Counsel; affected outputs must be re-tagged and the root cause investigated.
- License violation in a shipped product or service — report within 4 hours to IP Counsel and the Engineering lead; Legal determines notification obligations to the licensor.
- Unauthorized access to the IP Registry or trade secret repository — report within 1 hour to Security, IT, and the General Counsel; access must be revoked and an audit trail reviewed.

All IP incidents are logged in the Enterprise AI Platform's compliance incident module with an immutable audit trail. A root-cause analysis involving Legal, Security, and the affected department is mandatory within 10 business days. Incidents involving potential loss of patent rights or trade secret status are escalated to the board within 48 hours.

9. Training & Compliance

- All TechCorp employees must complete the annual Intellectual Property & Confidentiality training module administered by the Legal Department through the Enterprise AI Platform, with completion tracked by the HR Department.
- Engineering personnel must complete the Open-Source License Compliance workshop within 30 days of hire and annually thereafter, covering copyleft risks, attribution requirements, and the license submission workflow.

- Marketing personnel using AI for content generation must complete the AI-Generated Content & IP Rights training covering ownership, attribution, and third-party content clearance.
- All employees filing invention disclosures must complete the Patent & Trade Secret Awareness module before submitting their first disclosure.
- Quarterly IP compliance audits are conducted by Legal Operations in coordination with Security and Engineering; findings are summarized for the General Counsel and the board annually.

10. Review & Revision

This policy is reviewed every 6 months by the General Counsel, IP Counsel, and Legal Operations Lead, with input from the AI Department (for AI output ownership and provenance tooling), Engineering Department (for open-source license compliance and invention disclosure workflows), Marketing Department (for AI-generated content practices), Security Department (for IP access controls and exfiltration monitoring), and HR Department (for employee IP assignment and exit procedures). Revisions are versioned, approved by the General Counsel, and published through the Enterprise AI Platform's policy distribution module. Emergency revisions may be triggered by material changes in IP law, AI-generated work ownership rulings, or data usage regulation and follow an accelerated 14-day review cycle.

Referenced Policies: Legal Department AI Usage Policy (LEG-AI-001) • Corporate Compliance & Data Governance Policy (LEG-CORP-002) • TechCorp AI Safety Guidelines (AI Department) • Prompt Engineering Standards (AI Department) • Data Protection Standards (Security Department) • IT Access Management Policy (IT Department) • Employee IP Assignment Agreement (HR Department)